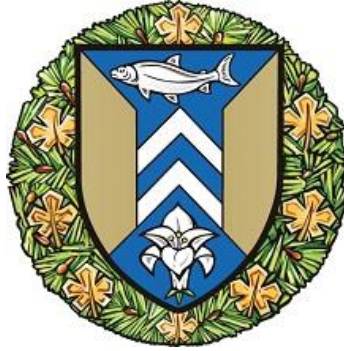




REGULAR MEETING OF CITY COUNCIL MINUTES

Monday, January 29, 2024

5:00 pm

Council Chambers and Video Conference

Present: Mayor M. Shoemaker, Councillor S. Hollingsworth, Councillor S. Spina, Councillor L. Dufour, Councillor L. Vezeau-Allen, Councillor A. Caputo, Councillor R. Zagordo, Councillor M. Bruni, Councillor S. Kinach, Councillor C. Gardi, Councillor M. Scott

Officials: M. White, R. Tyczinski, T. Vair, K. Fields, S. Schell, P. Johnson, P. Tonazzo, C. Rumiel, S. Hamilton Beach, B. Lamming, F. Coccimiglio, T. Vecchio, M. Zuppa, M. Borowicz-Sibenik, J. Ricard, L. Petrocco

1. Land Acknowledgement

2. Adoption of Minutes

Moved by: Councillor S. Hollingsworth

Seconded by: Councillor M. Scott

Resolved that the Minutes of the Regular Council Meeting of January 8, 2024 be approved.

Carried

3. Questions and Information Arising Out of the Minutes and not Otherwise on the Agenda

4. Declaration of Pecuniary Interest

4.1 Mayor M. Shoemaker – Closing and Conveyance Part Peer Street and Assume, Stop up, Close and Convey Blocks 7 and 8 1M448 Queen Street East – Housekeeping Report

Law firm represents the purchaser regarding this item.

4.2 Mayor M. Shoemaker – Deeming By-Law – Lots 28 and 29, Wilson B Subdivision Plan 1219 for Sault Ste. Marie Housing Corporation

Law firm represents Sault Ste. Marie Housing Corporation regarding this item.

4.3 Mayor M. Shoemaker – By-law 2024-6 (Street Closing and Conveyance) Stop Up, Close and Convey Corner Roundings (Queen Street East) Peer Subdivision

Law firm represents the purchaser regarding this item.

4.4 Mayor M. Shoemaker – By-law 2024-7 (Street Closing and Conveyance) Stop Up, Close and Convey Part Peer Street

Law firm represents the purchaser regarding this item.

4.5 Mayor M. Shoemaker – By-law 2024-12 (Subdivision Control) Deeming By-law Lots 28 and 29 Plan 1219 for SSM Housing (61 and 65 Wellington Street East)

Law firm represents Sault Ste. Marie Housing Corporation regarding this item.

4.6 Councillor S. Hollingsworth – Closing and Conveyance Part Peer Street and Assume, Stop up, Close and Convey Blocks 7 and 8 1M448 Queen Street East – Housekeeping Report

Purchaser is a relative.

4.7 Councillor S. Hollingsworth – By-law 2024-6 (Street Closing and Conveyance) Stop Up, Close and Convey Corner Roundings (Queen Street East) Peer Subdivision

Purchaser is a relative.

4.8 Councillor S. Hollingsworth – By-law 2024-7 (Street Closing and Conveyance) Stop Up, Close and Convey Part Peer Street

Purchaser is a relative.

5. Approve Agenda as Presented

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that the Agenda for January 29, 2024 City Council Meeting as presented be approved.

Carried

6. Presentations

6.1 Canadian Mental Health Association

Annette Katajamaki, Chief Executive Officer was in attendance.

7. Communications and Routine Reports of City Departments, Boards and Committees – Consent Agenda

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that all the items listed under date January 29, 2024 – Agenda item 7 – Consent Agenda save and except Agenda items 7.9 and 7.10 be approved as recommended.

Carried

7.1 Agreements Signed by CAO Under Delegated Authority 2023

The report of the CAO was received by Council.

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that the report of the CAO dated January 29, 2024 concerning Agreements Signed by CAO Under Delegated Authority 2023 be received as information.

Carried

7.2 Contract Extension Option – GIS Solution Sault Ste. Marie Innovation Centre

The report of the Manager of Purchasing was received by Council.

The relevant By-law 2024-8 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.3 2024 Registration of Tax Arrears Certificates and Sale

The report of the Manager of Taxation was received by Council.

Moved by: Councillor S. Hollingsworth

Seconded by: Councillor C. Gardi

Resolved that the report of the Manager of Taxation dated January 29, 2024 concerning Registration of Tax Arrears Certificates and Sale be received and that the Manager of Taxation be authorized to commence Tax Sale proceedings in accordance with the *Municipal Act, 2001*.

Carried

7.4 2023 Tax Sale Results and Vesting of Unsold Tax Sale Properties

The report of the Manager of Taxation was received by Council.

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that the report of the Manager of Taxation dated January 29, 2024 concerning the 2023 Tax Sale Results and Vesting Unsold Tax Sale Properties be accepted and Council authorize the Manager of Taxation to vest the following properties:

- 13 Abbott Street 040-023-158-00
- 201 John Street 040-026-038-00
- 172 Alexandra Street 040-026-035-00
- 60 London Street 040-020-034-00
- 149 Gore Street 040-024-029-00
- 107 Huron Street 040-031-107-00

in the City's name and transfer 60 London Street to the District of Sault Ste. Marie Social Services Administration Board for \$1.

Carried

7.5 Amendment to CUPE 67 Civic Centre Group Collective Agreement 2023 – 2028

The report of the Director of Human Resources was received by Council.

The relevant By-law 2024-15 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.6 Storm Sewer Rehabilitation Contract 2023-11E

The report of the Manager of Development and Environmental Engineering was received by Council.

The relevant By-law 2024-11 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.7 Sanitary Flow Metering

The report of the Manager of Development and Environmental Engineering was received by Council.

The relevant By-law 2024-14 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.8 Delivery of Print Materials

The report of the Solicitor/Prosecutor was received by Council.

Moved by: Councillor S. Hollingsworth

Seconded by: Councillor M. Scott

Resolved that the report of the Solicitor/Prosecutor dated January 29, 2024 concerning the process of enacting a by-law to regulate the delivery of print materials be received as information.

Carried

7.11 Deeming By-law, Lot 6, Block 65, and Block 73, Plan M420 for Biocchi on behalf of Ponnampalam (6 and 10 Palomino Drive)

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-13 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.12 Insurance Program Renewal – Policy Period 2024-2025

The report of the Risk Manager was received by Council.

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that the report of the Risk Manager dated January 29, 2024 concerning Insurance Program Renewal – Policy Period 2024-2025 be received and that Council authorize the Legal Department to bind coverage for the City in accordance with Intact's Municipal Insurance Program renewal documents which establishes the premium payable as \$1,783,425 plus applicable taxes.

Carried

7.13 A-1-24-OP Regulatory Flexibility for Residential Development – Postponement

The report of the Planner was received by Council.

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that the report of the Planner dated January 29, 2024 concerning A-1-24-OP Regulatory Flexibility for Residential Development be received and that Council postpone this application to the March 18, 2024 Council meeting.

Carried

7.9 Closing and Conveyance Part Peer Street and Assume, Stop up, Close and Convey Blocks 7 and 8 1M448 Queen Street East – Housekeeping Report

Mayor M. Shoemaker declared a conflict on this item. (Law firm represents the purchaser regarding this item.)

Councillor S. Hollingsworth declared a conflict on this item. (Purchaser is a relative.)

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-laws 2024-5, 2024-6 and 2024-7 are listed under item 12 of the Agenda and will be read with all by-laws under that item.

7.10 Deeming By-Law – Lots 28 and 29, Wilson B Subdivision Plan 1219 for Sault Ste. Marie Housing Corporation

Mayor M. Shoemaker declared a conflict on this item. (Law firm represents Sault Ste. Marie Housing Corporation regarding this item.)

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-12 is listed under item 12 of the Agenda and will be read with all by-laws under that item.

8. Reports of City Departments, Boards and Committees

8.1 Administration

8.1.1 Algoma Public Health

Citizen Liam Brechin made a delegation to Council.

Moved by: Councillor M. Scott

Seconded by: Councillor C. Gardi

Whereas on November 22, 2023 the Algoma Public Health Board passed a resolution to “undertake a feasibility study on the potential benefits and drawbacks of a voluntary merger of our two local public health agencies for the delivery of public health objectives.”; and

Whereas Algoma Public Health (APH) and Public Health Sudbury and District (PHSD) jointly wrote to numerous stakeholders on January 19, 2024 advising that they are “undertaking a process to explore a potential merger of the two public health units” and seeking feedback from those stakeholders on this proposal; and

Whereas since 2019, the Government of Ontario has attempted to change the delivery of public health throughout the province, first by attempting to force the merger of all Northeastern Ontario health units into a single health unit in 2019, which the government abandoned at the onset of the COVID-19 pandemic, and subsequently by incentivizing health units to explore voluntary mergers by paying the costs associated with undertaking the feasibility studies for such exploratory reviews; and

Whereas the delivery of public health has been shown, within the last four years to be a matter of great local concern; and

Whereas consolidation of APH with PHSD would be servicing an area spanning over 700km east-west from White River to Warren and 500km north-south from Chapleau to Manitoulin Island; and

Whereas any merged board would be unable to maintain all the regional representation that is currently represented on the Algoma Public Health Board, which is made up of a representative from Elliot Lake, one representative from Blind River, Spanish or Township of the North Shore, one representative from Wawa, White River or Dubreuilville, one representative from Thessalon or the Municipality of Huron Shores, one representative from Bruce Mines, Village of Hilton Beach, Townships of Hilton, Jocelyn, Johnson, Laird, MacDonald, Meredith and Aberdeen, Plummer Additional, Prince, St. Joseph, or Tarbutt; and

Whereas the history of services being delivered on a regional basis has often led to Northeastern services being consolidated in Sudbury;

Now Therefore Be It Resolved that the Council of the City of Sault Ste. Marie opposes the merger of Algoma Public Health with Public Health Sudbury and District and that a copy of this resolution be forwarded to the Board Chairs of both APH and PHSD.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	11	0	0	0
				Carried

8.1.2 Recruitment of Deputy CAO, Community Development and Enterprise Services

The report of the Director of Human Resources was received by Council.

Councillors Hollingsworth and Vezeau-Allen indicated interest in serving on the committee / task force.

A simultaneous recorded vote was held as follows:

Mayor Shoemaker – Councillor Vezeau-Allen

Councillor Spina – Councillor Vezeau-Allen

Councillor Hollingsworth – Councillor Hollingsworth

Councillor Dufour – Councillor Vezeau-Allen

Councillor Vezeau-Allen – Councillor Vezeau-Allen

Councillor Caputo – Councillor Vezeau-Allen

Councillor Zagordo – Councillor Vezeau-Allen

Councillor Bruni – Councillor Hollingsworth

Councillor Kinach – Councillor Hollingsworth

Councillor Gardi – Councillor Vezeau-Allen

Councillor Scott – Councillor Hollingsworth

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that:

- Councillor Vezeau-Allen ,the CAO, City Solicitor, Director of Human Resources and Mayor Shoemaker (ex officio) be appointed to the Selection Committee to recruit a Deputy CAO, Community Development and Enterprise Services;
- the recruitment process as outlined in this report be approved; and that
- staff be requested to bring revised guidelines for the recruitment and selection of senior staff to a future meeting of Council for consideration.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			

January 29, 2024 Council Minutes

Councillor S. Spina	X
Councillor L. Dufour	X
Councillor L. Vezeau-Allen	X
Councillor A. Caputo	X
Councillor R. Zagordo	X
Councillor M. Bruni	X
Councillor S. Kinach	X
Councillor C. Gardi	X
Councillor M. Scott	X

Results	11	0	0	0
				Carried

8.2 Corporate Services

8.3 Community Development and Enterprise Services

8.4 Public Works and Engineering Services

8.5 Fire Services

8.6 Legal

8.7 Planning

8.8 Boards and Committees

9. Unfinished Business, Notice of Motions and Resolutions Placed on Agenda by Members of Council

9.1 French Language Services

Moved by: Councillor L. Dufour

Seconded by: Councillor L. Vezeau-Allen

Whereas since the first contact of Europeans with the Indigenous inhabitants of this area, Sault Ste. Marie's history has been intertwined with French culture and language; and

Whereas Étienne Brûlé is believed to be the first settler to ever set foot in Bawating in 1622; 402 years ago. Brûlé identified the area on Samuel de Champlain's 1632 map as "Sault", giving Sault Ste. Marie the distinction of being the oldest recorded community in Ontario; and

Whereas Étienne Brûlé claimed the area of Bawating for France, naming it “Sault de Gaston”, after the brother of the then-King of France, Louis XIII;

Whereas Father Jacques Marquette, a Jesuit priest, established the first permanent settler mission in 1689, and adopted Sault de Sainte Marie as the name of the settlement, in effect ridding the area of its connection to the brother of the King, and honouring the Virgin Mary, all the while maintaining the name “Sault”, which is the traditional French word for rapids; and

Whereas since 1622 there has been a French presence in the area, and a French name for the post-contact community we know today as Sault Ste. Marie;

Whereas over the course of 150+ years since confederation, Sault Ste. Marie has developed into the commercial centre of the Algoma District, which proudly boasts a French population of roughly 10%, and Sault Ste. Marie welcomes and encourages its district neighbours to travel to and visit Sault Ste. Marie; and

Whereas the Corporation of the City of Sault Ste. Marie’s relationship toward its Francophone residents has not always been respectful and productive; and

Whereas Council of the City of Sault Ste. Marie passed a resolution, commonly referred to as the “English-only” resolution in 1990 which fractured relations between the municipality and the Francophone community; and

Whereas in June 1994 the Ontario Court, General Division, struck down the 1990 Council resolution and declared it *ultra vires* the municipality’s authority; and

Whereas in January 2010, Mayor John Rowsell apologized to all Francophones in Canada on behalf of the municipality for the 1990 resolution; and

Whereas it is Council’s desire to improve the relationship between the Corporation of the City of Sault Ste. Marie and its Francophone residents;

Now Therefore Be It Resolved that the Chief Administrative Officer ensure, through scheduling of existing employees, or filling vacancies that arise for resident-facing staff, that there is the ability for Francophone residents to navigate municipal services in French on a go-forward basis.

Further Be It Resolved that the English version, above, and the French version, of this resolution are equally authoritative.

Résolution À Propos des Services en Français

Proposée par: Luke Dufour

Appuyée par: Lisa Vezeau-Allen

Considérant que dès le premier contact des Européens avec les habitants autochtones de la région, l'histoire de Sault Ste. Marie fut étroitement liée à la culture et à la langue française; et

Considérant qu'Étienne Brûlé, qu'on estime être le premier colon à mettre le pied à Bawating en 1622, il y a 402 ans, et qu' en 1632 il a identifié cette région sur la carte de Samuel de

Champlain en tant que le « Sault », de sorte que Sault Ste. Marie a la distinction d'être la plus ancienne communauté de l'Ontario; et

Considérant qu'Étienne Brûlé a revendiqué la région de Bawating pour la France, en la nommant « Sault de Gaston », du nom du frère du roi de France de l'époque, Louis XIII ; et

Considérant que le Père Jacques Marquette, un prêtre jésuite, a établi en 1689 la première mission permanente de colons et a adopté le nom de Sault de Sainte Marie pour désigner cette colonie, débarrassant ainsi la région de son lien avec le frère du roi, honorant plutôt la Vierge Marie, tout en conservant le nom du « Sault », qui signifie « rapides » en français traditionnel; et

Considérant que depuis 1622, il y a eu une présence française dans la région et qu'un nom français a été attribué à cette communauté dès le premier contact avec les autochtones, dont nous l'appelons encore aujourd'hui « Sault Ste. Marie »;

Considérant qu'au cours de 150 ans et plus depuis la Confédération, la ville de Sault Ste. Marie est devenue le centre commercial du district d'Algoma. Fière de compter une population francophone d'environ 10 %, Sault Ste. Marie accueille et encourage ses voisins du district à se rendre à Sault-Sainte-Marie pour la découvrir; et.

Considérant que les relations entre la Corporation de la Ville de Sault Ste. Marie et ses résidents francophones n'ont pas toujours été respectueuses et productives; et

Considérant que le Conseil municipal de la Ville de Sault Ste. Marie a adopté en 1990 une résolution, communément appelée la résolution « unilingue anglaise », qui a rompu les relations entre la municipalité et la communauté francophone; et

Considérant qu'en juin 1994, la Cour de l'Ontario, Division générale, a annulé la résolution du Conseil municipal de 1990 et a déclaré l'autorité de la municipalité *ultra vires*; et

Considérant qu'en janvier 2010, le maire John Rowswell s'est excusé auprès de tous les francophones du Canada au nom de la municipalité de Sault Ste. Marie pour la résolution de 1990; et

Considérant que le Conseil souhaite améliorer les relations entre la Corporation de la Ville de Sault Ste. Marie et ses résidents francophones;

Il Est Donc Résolu Que Chef de l'administration s'assure, en établissant les horaires des employés actuels ou en pourvoyant les postes vacants au sein du personnel en contact avec les résidents, que les résidents francophones puissent naviguer les services municipaux en français, de manière continue;

IL Est Aussi Résolue Que la version française et la version anglaise de la présente résolution ont également force de loi.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			

Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	11	0	0	0
				Carried

9.2 Living Wage Comparators

Moved by: Councillor A. Caputo

Seconded by: Councillor L. Vezeau-Allen

Whereas employee recruitment and retention has proven to be a challenge for all job sectors; and

Whereas ensuring that The Corporation of the City of Sault Ste Marie is competitive with employee compensation within the current market is essential to attracting qualified employees and to retaining those already employed; and

Whereas being able to comfortably afford essentials increases quality of life, which is one of our strategic pillars;

Now Therefore Be It Resolved that staff be directed to investigate and report back to Council on positions within the Corporation of the City of Sault Ste. Marie and its external comparators with a view to creating a liveable wage target within the Corporation of the City of Sault Ste. Marie;

Further it be resolved that a review of all of the City of Sault Ste Marie's non-union salary grids including part time employees and students be undertaken.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			

Councillor S. Spina	X				
Councillor L. Dufour	X				
Councillor L. Vezeau-Allen	X				
Councillor A. Caputo	X				
Councillor R. Zagordo	X				
Councillor M. Bruni	X				
Councillor S. Kinach	X				
Councillor C. Gardi	X				
Councillor M. Scott	X				
Results	11	0	0	0	Carried

9.3 Use of Consultants

Moved by: Councillor S. Kinach

Seconded by: Councillor M. Bruni

Whereas the City has increased its dependences on consultants over the years; and

Whereas the federal government has just reviewed its consulting policy and found that it was overspending; and

Whereas consulting fees are not currently a line item in the budget and therefore cannot be properly discussed at the budget meeting; and

Whereas the previous Council spent roughly \$11 million between 2019-2023 on consulting services;

Now Therefore Be It Resolved that staff be requested to report back to City Council with a plan to make consultant fees a line item in the budget, reduce reliance on consulting firms, and a strategy to have more projects done in-house.

9.3.1 Motion as Amended

Moved by: Councillor S. Kinach

Seconded by: Councillor M. Bruni

Whereas the City has increased its dependence on consultants over the years; and

Whereas the federal government itself just reviewed its consulting policy and found it was overspending; and

Whereas consulting fees are not currently a line item in the budget and therefore cannot be properly discussed at the budget meeting; and

Whereas the previous council spent roughly \$11 million between 2019 and 2023 on consulting fees;

Now Therefore Be It Resolved that staff be requested to report back to City Council with a plan to make consultant fees a line item within each departmental budget,

Further be it resolved that staff report to Council by the end of Q1 to summarize the purposes for which each of the City's ten main service areas use consultants.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour		X		
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	1	0	0
				Carried

9.4 Physician Recruitment and Retention

Moved by: Councillor S. Kinach

Seconded by: Councillor S. Hollingsworth

Whereas the group health centre recently announced the de-rostering of 10,000 patients as a result of physician retirements or departures; and

Whereas there are believed to be 30,000 patients without access to a primary care provider in the Sault Ste. Marie area; and

Whereas the City of Sault Ste. Marie is not responsible for the delivery of healthcare, but plays a role in the recruitment and retention of physicians within our community; and

Whereas since it's inception in 2002, the Physician Recruitment Committee has recruited 205 physicians to practice in our community, an average of 10 per year; and

Whereas the challenges in physician recruitment and primary care delivery are common across Ontario; and

Whereas access to primary care is an issue that impacts social and economic outcomes in our community;

Now Therefore Be It Resolved that City Council request the Physician Recruitment and Retention Committee review its terms of reference and recommend changes to its funding partners to ensure its focus is on the delivery of primary care in the community, whether through adding nurse practitioner recruitment to their scope of duties, or other efforts that may provide easier access to primary care to Sault residents.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	11	0	0	0
				Carried

9.5 Funding of Post-Secondary Education

Moved by: Councillor M. Scott

Seconded by: Councillor M. Bruni

Whereas the Federal Government has recently announced policy changes that will negatively affect publicly funded colleges, particularly those in small, northern and rural regions of

Ontario, by altering the framework through which international students are admitted and managed; and

Whereas Sault College has developed an important public-private college partnership with triOS College that contributes \$40 million annually in revenue to Sault College, equal to one-third of the Sault College Budget; and

Whereas students enrolled in programs offered through the triOS public-private partnership campuses are recognized as students of a publicly funded college and are held to the same high standards of academic rigor, are provided with comparable wrap-around support services to those offered at Sault College and receive a Sault College credential; and

Whereas the elimination of Post-Graduate Work Permits for students graduating from programs offered through the triOS public-private partnership campus would result in an immediate suspension of revenue to Sault College, adversely affect the sustainability of the college and undermining the ability to support local employers; and

Whereas the Federal Government's policy changes have been made abruptly, without any consultation with postsecondary institutions and without a clear understanding of the severe financial hardship to smaller public colleges primarily outside of the GTA;

Now Therefore Be It Resolved that Sault Ste. Marie City Council urge the Federal Government to reconsider its recent policy changes and specifically exempt public-private partner institutions from being excluded in offering students who successfully complete their program of study, a Post-Graduate Work Permit.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			

Results	11	0	0	0
				Carried

Moved by: Councillor M. Scott

Seconded by: Councillor M. Bruni

Whereas there is a growing concern over the inadequate funding of post-secondary education by the Ontario Government, which has placed additional financial pressures on publicly funded colleges, undermined their sustainability and made it more difficult for colleges to respond to the needs of local employers; and

Whereas Sault College has developed an important public-private college partnership with triOS College that contributes \$40 million annually in revenue to Sault College, equal to one-third of the Sault College Budget; and

Whereas students enrolled in programs offered through the triOS public-private partnership campuses are recognized as students of a publicly funded college and are held to the same high standards of academic rigor, are provided with comparable wrap-around support services to those offered at Sault College and receive a Sault College credential; and

Whereas the elimination of Post-Graduate Work Permits by the Federal Government for students graduating from programs offered through the triOS public-private partnership campus would result in an immediate suspension of revenue to Sault College, adversely affect the sustainability of the college and undermining the ability to support local employers; and

Whereas the Ontario Government has recently called together a group of experts who have released recommendations in the Blue-Ribbon Panel report that are designed to ensure the long-term sustainability of the postsecondary education sector in Ontario:

Now Therefore Be It Resolved that Sault Ste. Marie City Council urge the Ontario Government to immediately implement the Blue-Ribbon Panel recommendations and actively work with the Federal Government to restore the eligibility of public-private partner colleges, to grant students who successfully complete their program of study, a Post-Graduate Work Permit.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			

Councillor A. Caputo	X
Councillor R. Zagordo	X
Councillor M. Bruni	X
Councillor S. Kinach	X
Councillor C. Gardi	X
Councillor M. Scott	X

Results	11	0	0	0
----------------	-----------	----------	----------	----------

Carried

9.5.1 Correspondence Received

10. Committee of the Whole for the Purpose of Such Matters as are Referred to it by the Council by Resolution

11. Adoption of Report of the Committee of the Whole

12. Consideration and Passing of By-laws

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that all By-laws under item 12 of the Agenda under date January 29, 2024 save and except By-laws 2024-6, 2024-7 and 2024-12 be approved.

Carried

12.1 By-laws before Council to be passed which do not require more than a simple majority

12.1.1 By-law 2024-5 (Street Assumption) Assume Portion of Queen Street East (Blocks 7 and 8 Plan 1M448)

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-5 being a by-law to assume for public use and establish as a public street a portion of Queen Street East described as Block 7 and Block 8 on Plan 1M448 be passed in open Council this 29th day of January, 2024.

Carried

12.1.4 By-law 2024-8 (Agreement) Sault Ste. Marie Innovation Centre GIS Extension

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-8 being a by-law to authorize the execution of the Agreement between the City and Sault Ste. Marie Innovation Centre for the contract extension of the Geographic Information System (GIS) Agreement be passed in open Council this 29th day of January, 2024.

Carried

12.1.5 By-law 2024-10 (Street Assumptions) Various Parcels of Land

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-10 being a by-law to assume for public use and establish as public streets various parcels of land conveyed to the City be passed in open Council this 29th day of January, 2024.

Carried

12.1.6 By-law 2024-11 (Engineering) South Market Area Storm Sewer Rehabilitation

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-11 being a by-law to authorize the execution of the Contract between the City and Insituform Technologies Limited for the South Market Area Storm Sewer Rehabilitation (Contract No 2023-11E) be passed in open Council this 29th day of January, 2024.

Carried

12.1.8 By-law 2024-13 (Subdivision Control) Deeming By-law Lot 6, Block 65 and 73 Plan M420 for Ponnampalam (6 and 10 Palomino Drive)

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-13 being a by-law to deem not registered for purposes of subdivision control certain lots in the Country Estates Subdivision, pursuant to section 50(4) of the *Planning Act* be passed in open Council this 29th day of January, 2024.

Carried

12.1.9 By-law 2024-14 (Engineering) Sanitary Flow Metering Contract 2023-13E

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-14 being a by-law to authorize the execution of the Contract between the City and Civica Infrastructure Inc. for sanitary flow metering (Contract 2023-13E) be passed in open Council this 29th day of January, 2024.

Carried

12.1.10 By-law 2024-15 (Agreement) Amendment To By-law 2023-204 (CUPE 67 Civic Centre Collective Agreement for the 2023-2028 Term)

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-15 being a by-law to amend Schedule "A" to By-law 2023-204 (CUPE 67 Civic Centre Collective Agreement for the 2023-2028 term) be passed in open Council this 29th day of January, 2024.

Carried

12.2 By-laws before Council for FIRST and SECOND reading which do not require more than a simple majority

12.3 By-laws before Council for THIRD reading which do not require more than a simple majority

12.3.1 By-law 2019-196 (Street Closing and Conveyance) McNabb Gladstone Project Great Lakes Honda

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2019-196 being a by-law to stop up, close and authorize the conveyance of a portion of Blake Avenue and a portion of Atlantic Street, in the Plummer Subdivision, Plan 285 be read a THIRD time and PASSED in open Council this 29th day of January, 2024.

Carried

12. Consideration and Passing of By-laws

12.1 By-laws before Council to be passed which do not require more than a simple majority

12.1.2 By-law 2024-6 (Street Closing and Conveyance) Stop Up, Close and Convey Corner Roundings (Queen Street East) Peer Subdivision

Mayor M. Shoemaker declared a conflict on this item. (Law firm represents the purchaser regarding this item.)

Councillor S. Hollingsworth declared a conflict on this item. (Purchaser is a relative.)

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that By-law 2024-6 being a by-law to stop up, close and authorize the conveyance of a portion of Queen Street East in the Peer Subdivision, Parts 4 and 5 on Plan 1R14115 to the abutting owners be passed in open Council this 29th day of January, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker			X	
Councillor S. Hollingsworth			X	
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	9	0	2	0

Carried

12.1 By-laws before Council to be passed which do not require more than a simple majority

12.1.1 By-law 2024-5 (Street Assumption) Assume Portion of Queen Street East (Blocks 7 and 8 Plan 1M448)

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-5 being a by-law to assume for public use and establish as a public street a portion of Queen Street East described as Block 7 and Block 8 on Plan 1M448 be passed in open Council this 29th day of January, 2024.

Carried

12.1.4 By-law 2024-8 (Agreement) Sault Ste. Marie Innovation Centre GIS Extension

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-8 being a by-law to authorize the execution of the Agreement between the City and Sault Ste. Marie Innovation Centre for the contract extension of the Geographic Information System (GIS) Agreement be passed in open Council this 29th day of January, 2024.

Carried

12.1.5 By-law 2024-10 (Street Assumptions) Various Parcels of Land

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-10 being a by-law to assume for public use and establish as public streets various parcels of land conveyed to the City be passed in open Council this 29th day of January, 2024.

Carried

12.1.6 By-law 2024-11 (Engineering) South Market Area Storm Sewer Rehabilitation

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-law 2024-11 being a by-law to authorize the execution of the Contract between the City and Insituform Technologies Limited for the South Market Area Storm Sewer Rehabilitation (Contract No 2023-11E) be passed in open Council this 29th day of January, 2024.

Carried

12.1.8 By-law 2024-13 (Subdivision Control) Deeming By-law Lot 6, Block 65 and 73 Plan M420 for Ponnampalam (6 and 10 Palomino Drive)

Moved by: Councillor S. Spina

Seconded by: Councillor M. Scott

Resolved that By-Law 2024-13 being a by-law to deem not registered for purposes of subdivision control certain lots in the Country Estates Subdivision, pursuant to section 50(4) of the *Planning Act* be passed in open Council this 29th day of January, 2024.

Carried

12.1.9 By-law 2024-14 (Engineering) Sanitary Flow Metering Contract 2023-13E

Moved by: Councillor S. Spina
Seconded by: Councillor M. Scott

Resolved that By-law 2024-14 being a by-law to authorize the execution of the Contract between the City and Civica Infrastructure Inc. for sanitary flow metering (Contract 2023-13E) be passed in open Council this 29th day of January, 2024.

Carried

12.1.10 By-law 2024-15 (Agreement) Amendment To By-law 2023-204 (CUPE 67 Civic Centre Collective Agreement for the 2023-2028 Term)

Moved by: Councillor S. Spina
Seconded by: Councillor M. Scott

Resolved that By-law 2024-15 being a by-law to amend Schedule "A" to By-law 2023-204 (CUPE 67 Civic Centre Collective Agreement for the 2023-2028 term) be passed in open Council this 29th day of January, 2024.

Carried

Councillor M. Scott assumed the Chair as Acting Mayor due to Mayor Shoemaker’s conflicts.

12.1.3 By-law 2024-7 (Street Closing and Conveyance) Stop Up, Close and Convey Part Peer Street

Mayor M. Shoemaker declared a conflict on this item. (Law firm represents the purchaser regarding this item.)

Councillor S. Hollingsworth declared a conflict on this item. (Purchaser is a relative.)

Moved by: Councillor S. Spina
Seconded by: Councillor C. Gardi

Resolved that By-law 2024-7 being a by-law to stop up, close and authorize the conveyance of part of Peer Street and a 0.30m Reserve (Block 9) in the Peer Subdivision, Plan 1M448 be passed in open Council this 29th day of January, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker			X	
Councillor S. Hollingsworth			X	
Councillor S. Spina	X			
Councillor L. Dufour	X			

January 29, 2024 Council Minutes

Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	9	0	2	0
Carried				

12.1.7 By-law 2024-12 (Subdivision Control) Deeming By-law Lots 28 and 29 Plan 1219 for SSM Housing (61 and 65 Wellington Street East)

Mayor M. Shoemaker declared a conflict on this item. (Law firm represents Sault Ste. Marie Housing Corporation regarding this item.)

Moved by: Councillor S. Spina

Seconded by: Councillor C. Gardi

Resolved that By-Law 2024-12 being a by-law to deem not registered for purposes of subdivision control certain lots in the Wilson "B" Subdivision, pursuant to section 50(4) of the *Planning Act* be passed in open Council this 29th day of January, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker			X	
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			

Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	0	1	0
				Carried

13. Questions By, New Business From, or Addresses by Members of Council Concerning Matters Not Otherwise on the Agenda
14. Closed Session
15. Adjournment
- Moved by: Councillor S. Hollingsworth
- Seconded by: Councillor C. Gardi
- Resolved that this Council now adjourn.

Carried

"Matthew Shoemaker"
Mayor

"Rachel Tyczinski"
City Clerk